

25STCV24639 25STCV24639

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Case Number: 25STCV24639 Hearing Date: July 27, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/27/2026

CASE NUMBER: 25STCV24639

CASE NAME: ALICIA HERNANDEZ UMANA vs ZEFERINO DELAO, et al.

MOVING PARTY: Plaintiff Alicia Hernandez

Umana

OPPOSING PARTY: Defendants Zeferino Delao, Patricia

Delao, Isidro Perez, Maria Josefina Perez

PROCEEDING: Motion to Compel Defendants' Responses to Plaintiff's Request for Production of Documents, Set One

RULING SUMMARY: Plaintiff Alicia Hernandez Umana's Motion to Compel Defendants' Responses to Plaintiff's Request for Production of Documents, Set One is granted.

Defendants Zeferino Delao, Patricia

Delao, Isidro Perez, and Maria Josefina Perez are ordered to provide responses to their respective Requests for Production, Set One, within 30 days of this Ruling.

A sanction of \$1,000.00 is imposed on defendants

Zeferino Delao, Patricia Delao, Isidro Perez, and Maria Josefina Perez's counsel of record, Carlos D. Vinoly, to be paid to Plaintiff's counsel of

record, Edrin Shamtab, within 30 days of this Ruling.

Background

On

August 21, 2025, Plaintiff Alicia Hernandez Umana ("Plaintiff") filed her Complaint against Defendants Zeferino Delao ("Zeferino"), Patricia Delao ("Patricia"), Isidro Perez ("Isidro"), and Maria Josefina Perez ("Maria" and collectively "Defendants"), alleging 10 causes of action for: (1) Negligence; (2) Tortious Breach of Implied Warranty of Habitability; (3) Breach of Covenant of Quiet Use and Quiet Enjoyment; (4) Breach of Habitability – Contract; (5) Premises Liability; (6) Nuisance; (7) Breach of the Implied Covenant of Good Faith and Fair Dealing; (8) Violation of Los Angeles Tenant Anti Harassment Ordinance § 45.33; (9) Intentional Infliction of Emotional Distress ("IIED"), and (10) Unfair Business Practices (Bus. & Prof. Code § 17200).

Plaintiff

alleges that she is the tenant of 1169½ E. 64th Street Los Angeles, CA 90001 (the "Subject Property") since November 2015 and, since the onset of tenancy, had numerous habitability issues, including but not limited to leakage, rat infestation, mold, lack of weather protection, etc. Plaintiff contends that a pattern began whereby she would inform Defendants of issues and Defendants would either: (1) not repair the issue until Plaintiff herself repaired it, or (2) hired unlicensed contractors, resulting in inferior workmanship.

On

October 02, 2025, Defendants filed their Answer.

On May

18, 2026, Plaintiff filed this Motion to Compel Defendants' Responses to Plaintiff's Requests for Production, Set One ("Motion to Compel").

Motion to Compel

Defendants' Responses to Plaintiff's Requests for Production, Set One

LEGAL

STANDARD

Cal. Code Civ.

Proc. § 2031.300 provides that a party may bring a motion to compel responses

to a request for production of documents, where the responding party failed to serve a timely response. Unless otherwise agreed, the responding party is required to serve response within 30 days after service of the discovery demand for production documents. (Code Civ. Proc. § 2031.260(a).) If the responding party fails to serve a timely response, the party “waives any objection to the demand, including one based on privilege or on the protection for work product . . .” (Code Civ. Proc. § 2031.300(a).) The requesting party need not demonstrate “good cause to compel responses, nor that it satisfied the “meet and confer” requirement. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 143 Cal.App.4th 390, 404.)

DISCUSSION

Plaintiff

asserts that she propounded her Requests for Production, Set One, on each Defendant via electric service on November 12, 2025. (See Decl. Khushboo Vasandani (“Vasandani”) at ¶ 2, Exhs. A-D.) Plaintiff argues that discovery responses were due on December 16, 2025, and Defendants did not respond nor sought any extensions.

Code

Civ. Proc. § 2031.260(a) provides that “[w]ithin 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve the original of the response to it on the party making the demand, and a copy of the response on all other parties who have appeared in the action, unless on motion of the party making the demand, the court has shortened the time for response, or unless on motion of the party to whom the demand has been directed, the court has extended the time for response.” 30 days from November 12, 2025 is December 12, 2025. The requests were served by electronic mail. (Vasandani Decl. ¶ 2.) “Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days . . .” (Code Civ. Proc. § 1010.6.) December 12, 2025 plus two court days is December 16, 2025. Defendants have not served responses.

Accordingly,
the Motion to Compel is granted.

Plaintiff

seeks \$2,110.00 [2 hrs @ \$300/hr [drafting motion] + 0.5 hrs @ \$300.00/hr [anticipated drafting of reply] + 1 hr @ \$300.00/hr [anticipated appearance at hearing] + an additional \$1,000 pursuant to Code Civ. Proc. § 2023.050]. (See Vasandani Decl. ¶ 9.)

Code

Civ. Proc. § 2031.300 provides:

Except as provided in subdivision (d), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey the order compelling a response, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to this sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).

Code Civ. Proc. § 2030.050 requires the Court to impose a \$1,000.00 sanction payable to the requesting party if, upon reviewing a request for a sanction made pursuant to Section 2023.040, the court finds any of the following: (1) the party, person, or attorney did not respond in good faith to a request for the production of documents made pursuant to Section 2020.010, 2020.410, 2020.510, or 2025.210, or to an inspection demand made pursuant to Section 2031.010; (2) the party, person, or attorney produced requested documents within seven days before the court was scheduled to hear a motion to compel production of the records pursuant to Section 2025.450, 2025.480, or 2031.320 that is filed by the requesting party as a result of the other party's, person's, or attorney's failure to respond in good faith; or (3) the party, person, or attorney failed to confer in person, by telephone, letter, or other means of communication in writing, as defined in Section 250 of the Evidence Code, with the party or attorney requesting the documents in a reasonable and good faith attempt to resolve informally any dispute concerning the request.

No justification has been presented for Defendants' failure to respond to Plaintiff's Requests for Production, Set One.

The Court imposes a \$1,000.00 sanction on Defendants' counsel of record, Carlos D. Vinoly, which shall be payable to Plaintiff's counsel.

Conclusion

Plaintiff

Alicia Hernandez Umana's Motion to Compel Defendants' Responses to Plaintiff's Request for Production of Documents, Set One is granted.

Defendants

Zeferino Delao, Patricia Delao, Isidro Perez, and Maria Josefina Perez are ordered to provide responses to their respective Requests for Production, Set One, within 30 days of this Ruling. A sanction of \$1,000.00 is imposed on Defendants Zeferino Delao, Patricia Delao, Isidro Perez, and Maria Josefina Perez's counsel of record, Carlos D. Vinoly, to be paid to Plaintiff's counsel of record, Edrin Shamtob, within 30 days of this Ruling.

Date: 07/27/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court